

Senate File 398

H-1240

1 Amend Senate File 398, as passed by the Senate, as follows:

2 1. Page 1, by striking lines 1 through 11.

3 2. Page 1, line 13, by striking <subparagraphs:> and
4 inserting <subparagraph:>

5 3. Page 1, by striking lines 14 through 19 and inserting:

6 <NEW SUBPARAGRAPH. (6) Discount points for the purpose
7 of reducing, and that result in a bona fide reduction of, the
8 interest rate applicable to the debt, or points, agreed upon by
9 the creditor and the consumer to secure a given interest rate,
10 provided the points and fees the consumer is charged by all
11 lenders in connection with the consumer loan do not exceed the
12 amounts specified in 12 C.F.R. §1026.43(e)(3).

13 Sec. _____. Section 537.2501, Code 2025, is amended by adding
14 the following new subsection:

15 NEW SUBSECTION. 4. For a consumer loan secured by an
16 interest in land, if a creditor that is a mortgage banker
17 licensed under section 535B.5 or registered under section
18 535B.3 originates such consumer loan in which the annual
19 percentage rate, points, and fees the consumer is charged
20 by all lenders in connection with the consumer loan do not
21 exceed the amounts specified in 12 C.F.R. §1026.43(e)(2)(vi)
22 and 12 C.F.R. §1026.43(e)(3), the consumer loan shall not be
23 subject to the limitations on fees specified in section 535.8,
24 subsection 4, paragraph "a", or section 535.8, subsection 5.>

25 4. By renumbering as necessary.

NORDMAN of Dallas